FINAL, ROUND 1: POSTMORTEM OF TEAM T03 PROSECUTION MEMORIAL

We are the Defence. Prosecutor v General Thorn. All answers below come from our existing Defence memorial and scripts.

1. At a glance

Structure. Preliminary matters (A: gravity; B: IAC for both counts). **Count 1**: biological experiment by Dr Loff as principal (1.1–1.7), alternatively inhuman treatment (2), Thorn aiding and abetting (3). **Count 2**: the crime by "Damaroi forces" (1.1–1.5), including a proportionality section (1.2.2); Thorn's liability by ordering only (2.1–2.3).

Their three biggest weaknesses:

1. **Wrong mental standards.** They use the ICTY "substantial likelihood" / "probably" tests for both counts (p 17 para 29; p 23 para 43). Article 30 requires more, and *dolus eventualis* is excluded.
2. **Count 2 never engages "purpose".** They say the schools were "not functioning as military facilities" (Summary p 4) and treat that as the end of the matter. The purpose limb of Article 52(2), *Hirgigo* and the Triffterer and Ambos Commentary are not discussed.
3. **Count 1 armed conflict and nexus are thin.** IAC "from 15 March 2025" rests only on the crossing of the River Targa; the nexus paragraph is two sentences (p 14 para 20).

2. Their case in short

Issue	What T03 argues
IAC	Any resort to armed force between States (*Tadić* [70]). IAC began when the Titans crossed the River Targa, "from 15 March 2025" (p 13 para 18). IHL applies until a general peace (*Katanga* Confirmation [381]; *Tadić* [68], [70]).
Count 1, Element 1	Dr Loff is the perpetrator. Jaku was an "investigational" drug (FDA website; a geriatric pharmacology textbook). "If it worked" shows its effects were unknown.
Count 1, Element 2	Headaches, disorientation, paranoia; "increasing physical fatigue"; "all Titans" paranoid (citing ¶39(f)–(g)).
Count 1, Element 3	"Intent" describes the character of the experiment. Dictionary definition of "therapeutic". Jaku was "developed not as a drug to cure the unknown disease". National-security purpose. Consent cannot validate; in any event no consent to the full dose.
Count 1, protected persons	GC I protects a party's own wounded and sick (ICRC GC I Commentary paras 1341, 1370; Sandoz para 445).
Count 1, Thorn	Approval is assistance (*Furundžija*); "direct and substantial" contribution (ILC Draft Code). Mental element: aware a crime "will probably be committed" (*Furundžija* [246]).
Count 2, crime	No positive action (¶42); attack based on "possibility"; Art 52(3) presumption "placing the burden on the Defence"; proportionality; intent = *dolus directus* of the first degree.
Count 2, Thorn	Authority as Chief of the Defence Force; "gave the order", coordinates; "substantial likelihood" mental element (*Martić* [220]; *D Milošević* [955]–[958]).

3. Concessions we can use

What they wrote	Where	How the Defence uses it
"Even if Jaku's therapeutic character precludes its classification as biological experimentation…"	p 14 para 24	They accept the therapeutic reading is open. Their fallback (inhuman treatment) needs **severe** suffering, which they do not show (section 4).
Dr Loff gave Jaku "for the purpose of studying whether it could restore the Titans' health…"	p 8 para 9	Restoring health is a therapeutic purpose. It also contradicts their para 12 (section 6).
Damaroi forces targeted the schools "on the premise that they constituted such military facilities"	p 21 para 37	Their own words: the premise of the attack was military, not civilian. That is our Count 2 Submission 2 (belief, not knowledge).
Targeting rested on the fact that "similar schools had previously been converted"	p 19 para 34	They accept a factual basis existed: the pattern. That is our purpose case.
Thorn "gave his approval to the proposal of Veyar"	p 16 para 27	The proposal was the President's; Dr Loff prescribed and administered. Thorn did not originate the programme.
The act of assisting requires a "direct and substantial" contribution	p 16 para 27	They adopt a higher threshold than they need. Hold them to it.
"Intended" requires *dolus directus* of the first degree: the prohibited consequence must be the perpetrator's objective	p 20 para 36	Thorn's objective was to destroy schools he believed would be military facilities. Destroying **civilian** objects was not his objective.

4. Legal errors

Count 1

1. **Mental element for aiding and abetting.** They say it is enough that the accused "was aware that one of a number of crimes will probably be committed" (p 17 para 29, citing *Furundžija* [246]). That is the ICTY customary test. Article 25(3)(c) requires the **purpose** of facilitating, and Article 30 excludes recklessness and *dolus eventualis* (our Defence memorial; *Bemba* Confirmation [360]; *Lubanga* Appeal [447]).
2. **Consent.** They rely on lack of consent to the full dose (para 15). Consent is not excluded in the Elements of Article 8(2)(a)(ii)-3, unlike 8(2)(b)(x); any ambiguity goes to the accused (Art 22(2)). Our memorial also covers emergency treatment for the comatose soldiers and continuation of an accepted course.
3. **Inhuman treatment alternative (para 24–25).** They say the threshold "is not exceptionally high" and rely on the soldiers being "already gravely ill… four lying in induced comas". The illness and the comas came before Jaku (¶15); Jaku woke the comatose soldiers (¶18). They show no severe suffering **caused by Jaku**.
4. **Protected persons.** They rely on GC I and the 2016 Commentary. In the readable pages they do not answer **footnote 33** or the contrast with Article 8(2)(b)(x)-2 ("in the power of an adverse party"). (Page 12 of their memorial is illegible in our copy; check the printed copy for any answer there.)
5. **Nexus (para 20).** Two sentences: Veyar asked Starr for help on "national security" and Loff gave Jaku. They do not show how the conflict played a substantial part in the decision, manner or purpose. Our answer: own soldiers, own doctor, own hospital; exactly what would happen in peacetime.

6. **Dr Loff's awareness of the IAC (para 22)** is inferred from her "assessing combat readiness". ¶20 says readiness "was assessed", without saying by whom. This is speculation.

Count 2

7. **Burden reversed.** They say the Art 52(3) presumption places "the burden on the Defence to prove otherwise" (p 19 para 34). Wrong: Article 66(2), "*The onus is on the Prosecutor to prove the guilt of the accused*"; Article 67(1)(i): no "reversal of the burden of proof or any onus of rebuttal".
8. **Proportionality is a different crime (para 35).** Excessive incidental harm is Article 8(2)(b)(iv), which is not charged. And it contradicts their own theory: harm is "incidental" only when the object of the attack is a military objective. They also say civilians' presence was "reasonably foreseeable", while ¶42 records the strike was set for night "when there is no one there".
9. **Wrong mental standard for ordering (para 43):** "substantial likelihood" (*Martić*, *D Milošević*). Article 30 requires awareness that the consequence "will occur in the ordinary course of events". It also contradicts their own para 36 (*dolus directus* first degree).
10. **Status confused with use.** "Not functioning as military facilities thereby qualifying as civilian objects" (Summary). Article 52(2) lists **purpose** separately from **use**. They never apply the purpose limb.
11. **Knowledge of non-use is not knowledge of civilian status (para 43).** They read "destroy them before Pallavon has the chance" as knowing the schools "remained civilian objects". It shows the opposite: Thorn's view was that their purpose was military.
12. **Precautions pleaded as the crime** ("no precautionary step taken to investigate", para 34). Precautions are not elements of Article 8(2)(b)(ii); Article 22(2).
13. **Authority (para 41)** rests only on Thorn's title and on leading Operation Titan. Nothing addresses that the only recorded exchange (¶42) is with the President, his superior. No inducing argument is made in the alternative.

5. Factual errors and misreadings of the Agreed Facts

They say	The Agreed Facts say
"Jaku was developed **not as a drug to cure** the unknown disease but… to enhance immunity, muscle strength, and endurance" (para 12)	¶17: "Jaku could help restore their health and enhance their immunity…"; strength and endurance were additional effects ("should also").
Jaku caused "increasing physical fatigue and exhaustion" (para 10, citing ¶39(f))	¶39(f) is a **July** report, three months after the charged period, and says fatigue grew "despite the initial strength gained from the Jaku injections". It does not say Jaku caused it.
"All Titans experiencing varying degrees of paranoia" as a result of the dose increase (para 11)	¶39(g) is also July, and describes concern that "their identities and mission were no longer covert".
Thorn's main intention was "to return to Pallavon stronger… no matter what it took" (para 29, citing ¶16)	¶16 was said in hospital **before** Jaku was proposed. ¶17 records Thorn's reason when he agreed: "Some of the guys are holding on for their lives… their conditions aren't getting better".
Thorn "expressly understood that Jaku was a biological experiment" (para 29)	No paragraph says so. ¶17: "if the Doc says it's good to go, then it can't be wrong".
"It was Thorn's approval that gave her the authority" (para 27)	¶17: the President visited Starr, requested its expertise and discussed Jaku with Dr Loff; Thorn agreed to the proposal passed on to him.

Five further schools "were struck after **evacuation** was again confirmed" (Facts p 3)	¶41: struck "following the confirmation of their **conversion**".
Four soldiers "in induced comas" as evidence of suffering (para 25)	¶15: comas due to the illness, before Jaku. ¶18: they woke after Jaku.

6. Internal contradictions

- Para 9: Jaku given to study whether it could "restore the Titans' health". Para 12: Jaku was "not… a drug to cure". Both cannot be right.
- Para 12 defines "therapeutic" as a drug "designed to cure, heal, or manage a disease". ¶17: Jaku "could help restore their health". By their own definition, Jaku was therapeutic.
- Para 36: "intended" means *dolus directus* of the first degree. Para 43: "substantial likelihood" is enough.
- Para 35 (proportionality, incidental harm) assumes a military objective; the rest of Count 2 says the schools themselves were the civilian target.
- Preliminary para 6 grounds the IAC on Operation Titan **and Titan 2.0**. Titan 2.0 began on 1 June (¶24), after the injections (2–10 April).

7. Our Defence arguments they do not answer

- **Count 1:** footnote 33 and the 8(2)(b)(x)-2 contrast (readable pages); *Milch* (knowledge of criminal character); mistake of fact; Thorn took Jaku himself; deference to medical advice; injections stopped once recovery was complete; "rehabilitation only"; the Article 31(1)(d) alternative; no hostilities before 2 April (¶13–14 fire treated as natural; Han's 22 April statement).
- **Count 2:** purpose = intended future use (*Hirgigo*; Triffterer and Ambos mn 211); Pallavon's own Cabinet decision (¶37) and the 12 + 5 conversions (¶41); Art 52(3) speaks of present use; belief is not knowledge; Art 32(1); night strike as care; verification is precaution, not the crime (Art 22(2)); no authority over the President; inducing requires a substantial contribution.

8. Where they are strongest (be ready)

Their point	Our existing answer
¶42: "no positive action"; Veyar: "We don't have any confirmation"	Both concern present **use**. Our case is **purpose**. Evacuation was the same first step taken with every school before (¶41). The same paragraph records the conversation.
Doubled dose without notice or consent (¶19)	Adjusting the dose within an accepted course on medical advice; emergency principle for the comatose; consent not excluded by the Elements; Thorn did not supply a consent that was withheld.
Thorn's "newfound strength" before approving the higher dose (¶19)	Many soldiers still had symptoms; the dose was raised "for optimal results" on the doctor's advice; injections stopped once all 40 recovered (¶20).
IAC from the crossing of the River Targa (~15 March)	Sick soldiers crossing a remote riverbank, no engagement, fire treated as natural and never investigated (¶14), Han on 22 April: "good relations". "Mere frontier incidents" are not hostilities.
GC I protects own wounded and sick (Commentary para 1370)	Footnote 33 applies to every crime under 8(2)(a); protected status presupposes an adverse party; Art 22(2).

9. Weak authorities and citation errors

- **Non-legal sources for legal tests:** Cambridge Dictionary for "therapeutic" (fn 38); FDA website (fn 22); *Drugs for the Geriatric Patient* (fn 23); Tallinn Manual (cyber) for military objectives (fn 99).
- **Out-of-context cases:** *Akayesu* [502] (genocide, serious bodily harm) for endangerment; *BiH v Andrun* (concealing detainees) for inhuman treatment; *Prodhan* (ICT-Bangladesh) for proportionality.
- **Citation slips:** *Bemba et al* Appeal dated "17 September 2018" (it is 8 March 2018); *Mbarushimana* ICC-01/04-01/10-514 called a "Judgment" (it is the Appeals judgment on the confirmation decision); "Article 23(3)()" and "General Thorne" in the Summary; *Semanza* listed twice.

Use these only if a judge raises the authority. Do not spend speaking time on citation slips.

10. Oral strategy for our Defence

1. **Lead with their concessions.**

   > "My learned friends accept that the attack was launched on the premise that the schools constituted military facilities (their para 37). That is the premise of a military objective, not of a civilian object."

   > "My learned friends themselves describe Jaku as given to study whether it could restore the Titans' health (their para 9). That is a therapeutic purpose."

2. **Correct the burden once, clearly.**

   > "With respect, the presumption in Article 52(3) does not shift any burden to the Defence. Article 66(2): the onus is on the Prosecutor. Article 67(1)(i): no reversal of the burden of proof."

3. **Mental standard, both counts.**

   > "'Substantial likelihood' and 'will probably be committed' are ICTY tests. Under Article 30, recklessness and dolus eventualis are excluded. My learned friends themselves say 'intended' means dolus directus of the first degree."

4. **Proportionality is not charged.**

   > "Excessive incidental harm belongs to Article 8(2)(b)(iv), which is not charged. Article 22(2): the definition of a crime shall not be extended by analogy."

5. **Purpose is the gap in their Count 2.** Keep our Submission 1 exactly as scripted: two conditions, four ways, purpose = intended future use, *Hirgigo* then the Commentary, Cabinet, 12 + 5, the same first step.
6. **Count 1 facts.** Correct ¶39(f)–(g) (July, outside the charged period) and the comas (¶15, ¶18) in one sentence each.
7. **Gravity.** They raise gravity as a preliminary matter. Our memorial does not contest it; do not open it unless the bench asks.
8. **Standing rules still apply:** never argue military necessity; say "the same first step", never "positive step"; say "the same paragraph records the conversation".

11. Notes

- Memorial page 12 (PDF page 24, covering 1.4–1.6.1: protected persons, Dr Loff's awareness of protected status, start of the IAC section) is blurred in our copy. Check the printed memorial for any answer to footnote 33 there.
- Paragraph numbers for *Bemba* Confirmation [360] and *Lubanga* Appeal [447] are as used in our memorial; confirm in the PDFs before citing orally.

- Rome Statute Article 66(2) and 67(1)(i) wording verified against the Statute PDF in our repository (printed pp 47–48).